

5. **Charitable uses within the Act.**—An attempt was formerly made to have a *charitable use* excepted from the statute, but Lord Talbot decreed (*f*), and Lord Hardwicke affirmed the decision (*g*), and Lord Northington said every man of sense must subscribe to it (*h*), that a gift to a charity must be treated on the same footing with any other disposition.

6. **Whether the Crown is bound by the statute.**—It was held by the Court of Queen's Bench (*i*), that the *Crown* was bound by the Statute of Frauds, and therefore was not at liberty to prove a *superstitious use* by parol; but in the Court of *Exchequer* it was ruled, on the contrary, that the Statute of Frauds did *not* bind the Crown, but took place only between subject and *subject. Lord Hardwicke [*55] expressed his doubts upon the latter doctrine, that the Crown was not bound by a statute unless specially named; but at the same time mentioned a case in which that doctrine had been followed (*a*).

7. **Colonial lands.**—It seems the statute will not apply to lands situate in a *colony* planted before the Statute of Frauds was passed (*b*). Planters carry out with them their country's laws as they subsist at the time; but subsequent enactments at home do not follow them across the seas unless it be so specially provided.

[8. **The statute to be a bar must be pleaded.**—If an action be brought to have the benefit of a parol trust of lands, a defendant, who would rely on the Statute of Frauds as a bar, must under the present practice insist upon it by his pleading (*c*)].¹

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| (<i>f</i>) Lloyd v. Spillet, 3 P. W. 344. | and see Adlington v. Cann, 3 Atk. |
| (<i>g</i>) S. C. 2 Atk. 148; S. C. Barn. | 146. |
| 384; and see Adlington v. Cann, 3 | (<i>a</i>) Adlington v. Cann, 3 Atk. 154. |
| Atk. 150. | (<i>b</i>) See 2 P. W. 75; Gardiner v. |
| (<i>h</i>) Boson v. Statham, 1 Eden. 513. | Fell, 1 J. & W. 22. |
| (<i>i</i>) King v. Portington, 1 Salk. 162; | [(<i>c</i>) Rules of the Supreme Court |

Mills. 69 Ia. 755. Trusts may be declared by letter. Moore v. Pickett, 62 Ill. 158. Parol admissions require, also, evidence of an agreement before the sale. Barnes v. Taylor, 27 N. J. Eq. 259. Absolute deed with instructions to sell after grantor's death, and pay legacies, is void. Adams v. Adams, 79 Ill. 517. See, also, notes relating to parol evidence.

¹ The Statute of Frauds is waived if not pleaded; Carpenter v. Davis, 72